

Navnath Nagnath Salunke vs Shivkannya Navnath Salunke on 17 January, 2022

Author: Mangesh S. Patil

Bench: Mangesh S. Patil

30 SA 326 OF 2019.odt

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

30 SECOND APPEAL NO.326 OF 2019
WITH CA/6952/2019 IN SA/326/2019

NAVNATH NAGNATH SALUNKE
VERSUS
SHIVKANNYA NAVNATH SALUNKE

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Advocate for Appellant : Mr. Irale Patil D.R

CORAM : MANGESH S. PATIL, J.

DATE : 17.01.2022.

PER COURT :

Heard learned advocate Mr. Irale Patil for the appellant.

2. The appellant is the husband of the respondent and had filed a petition seeking dissolution of marriage on the ground of cruelty and desertion as contemplated under Section 13(1)(i-a) and (i-b) of the Hindu Marriage Act. He had succeeded in obtaining a decree on the ground of desertion though not on the ground of cruelty. By the judgment and order under challenge the appellate court has allowed the respondent's appeal and has set aside the decree of divorce.

3. After hearing the learned advocate, the appeal stands admitted on following substantial question :

(1) Whether the Courts below have grossly erred in appreciating the facts and circumstances indicating that apart from the grounds of cruelty and desertion, even there was evidence apparently making out grounds for divorce under Section 13(1)(1-A)(i) and (ii) of the Hindu Marriage Act when there was a decree for restitution of conjugal rights passed in H.M.P. No.5/2008 under Section 9 of the Hindu 30 SA 326 OF 2019.odt Marriage Act, and refusing to formulate the issues/points for determination ?

2. Call record and proceeding.

(MANGESH S. PATIL, J.) mkd/-